

24TRCV03084 24TRCV03084

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C5%2C07%2F16%2F2026

Source SHA-256: d1a7056c5113171486e3e6f50d8fc88ad3174d51935c2e45a9139f379a3e6b0c

Case Number: 24TRCV03084 Hearing Date: July 16, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JIMMY LEE JACKSON JR.

;

Plaintiff,

vs.

FCA US, LLC

;

Defendant.

Case

No.:

24TRCV03084

Hearing

Date:

July
16, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

FCA US, LLC'S MOTION TO COMPEL DEPOSITION OF PLAINTIFF JIMMY LEE JACKSON JR.

(2)

DEFENDANT

FCA US, LLC'S REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,420.00
AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL FOR MISUSE OF THE DISCOVERY PROCESS

MOVING PARTY: Defendant,
FCA US, LLC

RESPONDING

PARTY: No
opposition.

(1)

Defendant

FCA US, LLC's Motion to Compel Deposition of Plaintiff Jimmy Lee Jackson Jr. is
GRANTED IN PART to Code of Civil Procedure section 2025.450, subdivision (a).

(2)

Defendant

FCA US, LLC's Request for Monetary Sanctions in the Amount of \$3,420.00 Against
Plaintiff and Plaintiff's Counsel for Misuse of the Discovery Process is GRANTED
in the reduced amount of \$1,760.00 pursuant to Code of Civil Procedure section
2025.450, subdivision (g)(1).

The Court considers the moving papers filed on

May 20, 2026. To date, no opposition brief has been filed.

BACKGROUND

Factual Background

On September 16, 2024, plaintiff Jimmy Lee Jackson Jr. ("Plaintiff") filed the Complaint against defendants FCA US, LLC ("Defendant") and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794, 1795.5); and (5) Fraudulent Inducement – Concealment.

On May 23, 2025, Defendant served a deposition notice along with a request for the production of documents on Plaintiff, scheduling the deposition for June 24, 2025. (Declaration of Samantha M. Geraghty ("Geraghty Decl."), ¶ 2, Exh. 1.) On June 20, 2025, Plaintiff served an objection to the deposition notice, citing unavailability and indicating that the requested documents would not be produced. (Geraghty Decl., ¶ 3.)

Subsequently, on June 20, June 23, July 2, and July 24, 2025, Defendant's counsel sent multiple emails to Plaintiff's counsel to solicit Plaintiff's availability for deposition. (Geraghty Decl., ¶¶ 4-7, Exhs. 2-5.) However, Plaintiff's counsel did not respond to these emails. (Geraghty Decl., ¶¶ 4-7, Exhs. 2-5.)

On November 5, 2025, Defendant's counsel followed up, asking whether Plaintiff would be available for deposition on January 20, 2026. (Geraghty Decl., ¶ 8, Exh. 6.) Plaintiff's counsel allegedly responded that they would discuss the date with Plaintiff. (Geraghty Decl., ¶ 8.)

On November 10, 2025, Defendant served an amended deposition notice along with a request for the production of documents, scheduling the deposition for January 20, 2026. (Geraghty Decl., ¶ 9, Exh. 7.)

On January 15, 2026, Plaintiff's counsel again objected to the deposition notice, asserting that "Plaintiff will not be produced for deposition on the date, time, and location noticed. Plaintiff will meet and confer with Defendant to reschedule the deposition." (Geragthy Decl., ¶ 10, Exh. 8.) On the same day, Defendant's counsel sent an email to Plaintiff's counsel, requesting alternative dates by the close of business on January 20, 2026, and indicating that failure to respond would prompt a motion to compel. (Geragthy Decl., ¶ 11, Exh. 9.)

On April 22, 2026, Defendant's counsel followed up once more; however, Plaintiff's counsel did not provide a response. (Geragthy Decl., ¶ 12, Exh. 10.) Following this, on April 28, 2026, Defendant's counsel issued yet another follow-up. (Geragthy Decl., ¶ 13, Exh. 11.) On April 29, 2026, Plaintiff's counsel responded, stating, "Please note that we are working on this request and intend to get back to you as soon as possible." (Geragthy Decl., ¶ 14, Exh. 12.) To date, Plaintiff has yet to provide any proposed deposition dates. (Geragthy Decl., ¶ 15.)

On May 26, 2026, the Court signed the Stipulation and Protective Order – Confidential Designation Only.

LEGAL STANDARD

Code of Civil Procedure section 2025.450, subdivision (a) provides: "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

"Unless otherwise limited by order of the court in accordance with

this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

The motion must “be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).) “Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.020.)

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or

that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a).) “Misuses of the discovery process

include ... (d) Failing to respond or to submit to an authorized method of

discovery. ... (i) Failing to confer or to attempt to

confer, in person, by telephone, or by videoconference with an opposing party

or attorney in a reasonable and good faith attempt to resolve informally any

dispute concerning discovery, if the section governing a particular discovery

motion requires the filing of a declaration stating facts showing that an

attempt at informal resolution has been made..”

(Code Civ. Proc., § 2023.010, subds. (d), (i).)

“The court may award sanctions under the Discovery Act in favor of a

party who files a motion to compel discovery, even though no opposition to the

motion was filed, or opposition to the motion was withdrawn, or the requested

discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Defendant must

meet and confer with Plaintiff before bringing this motion, either by

contacting the deponents to inquire about the nonappearance or by following

Code of Civil Procedure section 2016.040.

(Code Civ. Proc., § 2025.450, subd. (b)(2).) Code of Civil Procedure section 2016.040

states that a meet and confer declaration “in support of a motion [to compel]

shall state facts showing a reasonable and good faith attempt at an informal

resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) ““The parties must present to each other the

merits of their respective positions with the same candor, specificity and

support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on

the table, and a party has meaningfully assessed the relative strengths and

weaknesses of its position in light of all available information, can there be

a ‘sincere’ effort to resolve the matter.’”

(In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294,

quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

The Court finds that Defendant made sufficient

attempts to meet and confer regarding the deposition date.

On May 23, 2025, Defendant

served a deposition notice along with a request for the production of documents

on Plaintiff, scheduling the deposition for June 24, 2025. (Geragthy Decl., ¶ 2, Exh. 1.) On June 20, 2025, Plaintiff served an objection to the deposition notice, citing unavailability and indicating that the requested documents would not be produced. (Geragthy Decl., ¶ 3.)

Subsequently, on June 20, June 23, July 2, and July 24, 2025, Defendant's counsel sent multiple emails to Plaintiff's counsel to solicit Plaintiff's availability for deposition. (Geragthy Decl., ¶¶ 4-7, Exhs. 2-5.) However, Plaintiff's counsel did not respond to these emails. (Geragthy Decl., ¶¶ 4-7, Exhs. 2-5.)

On November 5, 2025, Defendant's counsel followed up, asking whether Plaintiff would be available for deposition on January 20, 2026. (Geragthy Decl., ¶ 8, Exh. 6.) Plaintiff's counsel allegedly responded that they would discuss the date with Plaintiff. (Geragthy Decl., ¶ 8.)

On November 10, 2025, Defendant served an amended deposition notice along with a request for the production of documents, scheduling the deposition for January 20, 2026. (Geragthy Decl., ¶ 9, Exh. 7.)

On January 15, 2026, Plaintiff's counsel again objected to the deposition notice, asserting that "Plaintiff will not be produced for deposition on the date, time, and location noticed. Plaintiff will meet and confer with Defendant to reschedule the deposition." (Geragthy Decl., ¶ 10, Exh. 8.) On the same day, Defendant's counsel sent an email to Plaintiff's counsel, requesting alternative dates by the close of business on January 20, 2026, and indicating that failure to respond would prompt a motion to compel. (Geragthy Decl., ¶ 11, Exh. 9.)

On April 22, 2026, Defendant's counsel followed up once more; however, Plaintiff's counsel did not provide a response. (Geragthy Decl., ¶ 12, Exh. 10.) Following this, on April 28, 2026, Defendant's counsel issued yet another follow-up. (Geragthy Decl., ¶ 13, Exh. 11.) On April 29, 2026, Plaintiff's counsel responded, stating, "Please note that we are working on this request and intend to get back to you as soon as possible." (Geragthy Decl., ¶ 14, Exh. 12.) To date, Plaintiff has yet to provide any proposed deposition dates. (Geragthy Decl., ¶ 15.)

Consequently, the Court concludes that Defendant has adequately attempted to meet and confer regarding the deposition date. However, the Court observes that Defendant did not address Plaintiff's objections to the requests for the production of documents during the meet-and-confer emails. As a result, the Court finds that Defendant did not sufficiently meet and confer on those requests. As a result, the Court will refrain from addressing this issue on its merits and will not compel Plaintiff to produce the requested documents.

DISCUSSION

Defendant requests that the Court issue an order compelling Plaintiff to attend his deposition within a period of thirty (30) days. (Motion, p. 3:12-14.) Plaintiff has not proposed any alternative dates for this deposition. (Geragthy Decl., ¶ 15.) The information obtained during the deposition will enable Defendant to assess the case and facilitate potential settlement, as it will "lead to discovery of information relating to disputed facts of consequence in the action and will have a tendency in reason to prove or disprove Plaintiff's claims." (Motion, p. 6:6-10.) In particular, Defendant contends that the deposition will help determine "the scope of his allegations and his claimed damages." (Motion, p. 6:13-14.) The Court agrees. Without Plaintiff's deposition, Defendant would be at a disadvantage and unable to fully evaluate the case.

In light of these considerations, the Court GRANTS IN PART Defendant's motion to compel deposition. Plaintiff shall appear for his deposition by August 13, 2026. However, the Court will not compel Plaintiff to produce the requested documents.

Request For Monetary Sanctions

Defendant requests \$3,420.00 in sanctions to cover attorney's fees and costs incurred in the filing of this motion. (Motion, pp. 6:19-7:19.) This

request is made pursuant to Code of Civil Procedure sections 2023.020 and 2025.450, subdivision (g)(1). (Motion, pp. 6:21-7:1.)

The request is

supported by a declaration from Defendant's counsel, Samantha M. Geragthy. In this declaration, Geragthy indicates that their hourly rate is \$400.00 and that they devoted 3.4 hours to drafting the motion and engaging in attempts to meet and confer with Plaintiff's counsel. (Geragthy Decl., ¶ 16.) Geragthy anticipates that an additional 2.0 hours will be required to review the opposition and another 3.0 hours to attend the hearing. (Geragthy Decl., ¶ 16.) Additionally, Defendant incurred \$60.00 in filing fees. (Geragthy Decl., ¶ 16.)

Considering that the Court is granting this motion and does not find the imposition of sanctions to be unjust, the Court GRANTS Defendant's request for sanctions against Plaintiff and his counsel, jointly and severally. However, the Court reduces the imposed sanction to \$1,760.00 to reflect 4.4 hours of work. This reduction is based on the straightforward nature of the motion, the fact that Plaintiff did not file an opposition, and the expectation that the hearing on the motion should not exceed one hour.

ORDERS

1) Defendant

FCA US, LLC's Motion to Compel Deposition of Plaintiff Jimmy Lee Jackson Jr. is GRANTED IN PART.

2) Plaintiff

Jimmy Lee Jackson Jr. shall appear for his deposition on or before August 13, 2026. However, the Court will not compel Plaintiff to produce the requested documents.

3) Defendant

FCA US, LLC's Request for Monetary Sanctions in the Amount of \$3,420.00 Against Plaintiff and Plaintiff's Counsel for Misuse of the Discovery Process is GRANTED in the reduced amount of \$1,760.00.

4) Plaintiff

Jimmy Lee Jackson Jr. and his counsel shall pay Defendant's counsel \$1,760.00 on or before August 13, 2026, jointly and severally.

5) Defendant

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 16, 2026

Tamara

Hall

Judge

of the Superior Court